

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
KYLE BEATON,

Plaintiff,

- against -

THE CITY OF NEW YORK, the NEW YORK CITY
POLICE DEPARTMENT, DETECTIVE STEVEN
LUTZ, DETECTIVE 2ND GRADE GLENN
MAURO, P.O. MICHAEL FRAUMENI and JOHN
DOES 1-20, agents of the defendants, names
being fictitious as their true identities are
unknown at this time,

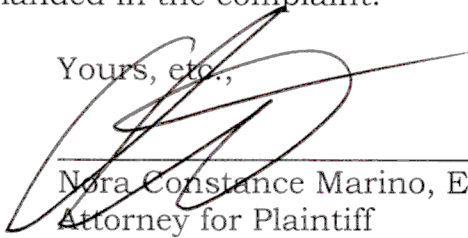
Defendants.

-----X
To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, of if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney(s) within twenty days after the services of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Nassau County, New York
March 9, 2021

Yours, etc.,



Nora Constance Marino, Esq.
Attorney for Plaintiff

175 East Shore Road, Suite 230
Great Neck, New York 11023
516.829.8399
File No.: 1619

Service to:
See next page:

CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
One Centre Street
Room 1200
New York, NY 10007-2341

CITY OF NEW YORK
LAW DEPARTMENT
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, NY 10038

DETECTIVE STEVEN LUTZ
One Edgewater Plaza
Staten Island, NY 10305

DETECTIVE 2ND GRADE GLENN MAURO
One Edgewater Plaza
Staten Island, NY 10305

P.O. MICHAEL FRAUMENI
New York Police Department – 120th Precinct
78 Richmond Terrace
Staten Island, NY 10301

P.O. JOHN DOES (1-50)
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
KYLE BEATON,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK, the NEW YORK CITY
POLICE DEPARTMENT, DETECTIVE STEVE LUTZ,
DETECTIVE 2ND GRADE GLENN MAURO, P.O.
MICHAEL FRAUMENI and JOHN DOES 1-20,
agents of the defendants, names being fictitious as
their true identities are unknown at this time,

Defendants.

-----X

Plaintiff, by his attorney, NORA CONSTANCE MARINO, ESQ.
complaining of the Defendants herein, respectfully show this Court, and allege
as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff KYLE BEATON
("BEATON" or "PLAINTIFF") was and still is a resident of the County of Richmond,
State of New York.

2. That at all times hereinafter mentioned, defendant CITY OF NEW
YORK ("CITY") was and still is a municipal corporation, duly organized and
existing under and by virtue of the law of the State of New York.

3. That at all times hereinafter mentioned, defendant NEW YORK CITY
POLICE DEPARTMENT ("NYPD") was and still is a municipal corporation and/or

municipal police department, duly organized and existing under and by virtue of the law of the State of New York.

4. That at all times hereinafter mentioned, defendant DETECTIVE STEVEN LUTZ ("LUTZ") was an agent, servant, and/or employee of defendants City and NYPD; was a member of the NYPD; and was acting for, upon, and in course of and in furtherance of the business of their employers and within the scope of their employment for defendants City and NYPD.

5. That at all times hereinafter mentioned, defendant DETECTIVE 2ND GRADE GLENN MAURO was an agent, servant, and/or employee of defendants City and NYPD; was a member of the NYPD; and was acting for, upon, and in course of and in furtherance of the business of their employers and within the scope of their employment for defendants City and NYPD.

6. That at all times hereinafter mentioned, defendant P.O. MICHAEL FRAUMENI was an agent, servant, and/or employee of defendants City and NYPD; was a member of the NYPD; and was acting for, upon, and in course of and in furtherance of the business of their employers and within the scope of their employment for defendants City and NYPD.

7. That at all times hereinafter mentioned, defendants John Does 1-20, names being fictitious as names are unknown at this time, were agents, servants, and/or employees of defendants City and NYPD; were members of the NYPD; and were acting for, upon, and in course of and in furtherance of the

business of their employers and within the scope of their employment for defendants City and NYPD.

8. That all times hereinafter mentioned defendants City and NYPD employed police officers and jailors and others hereafter mentioned in this complaint.

9. That at all times hereinafter mentioned, defendants City and NYPD owned, maintained, supervised, managed, operated, inspected and controlled the various jails, police, facilities, police stations, police precincts, police equipment, police vehicles, all hereinafter mentioned in the complaint.

10. That at all times hereinafter mentioned, all of the actions of the officers allege herein were done within the scope and course of their employment with defendants City and NYPD and under color of the state law.

FACTS

11. Plaintiffs repeat, reiterate, and reallege all of the allegations set forth above.

12. On March 12, 2018 at approximately 5:30 pm plaintiff and friend Emmanuel Jallah ("Jallah"), along with 4-5 other friends were standing in the lobby of 55 Boeing Street, Staten Island. Jallah was on his way to Physical Therapy at 24 Bradley Ave., Staten Island.

13. Jallah decided to take a cab to his physical therapy; so one of his friends named "Tone" ordered a LYFT car through an app for plaintiff. A driver

and vehicle were assigned by Lyft.

14. The Lyft car arrived around 5:30-6:00 pm. Tone notices that the driver is someone that he (Tone) had an issue with prior thereto. Tone thus tried to cancel the ride on his app on his phone but is unable to do so. Tone asks Beaton to cancel the ride. Beaton approaches the car and speaks to the driver through the window; Jallah gets in the car. Beaton then enters the car after Jallah; conversations ensued about canceling the car versus not cancelling the car. The driver was refusing to cancel the ride. Beaton then took the driver's phone, which was not on the driver's body, but rather in a holder in the car, steps outside the car, and cancels the ride from the driver's phone. Jallah exits the car; Beaton returns the phone to the driver.

15. The Lyft driver then exits the car and recognizes Tone, and starts yelling, "police", "help", "gun". The driver made racial slurs to Jallah and Beaton. The Lyft driver then calls 911 from his phone. Jallah, Beaton, and the other two friends left the area. All of this was captured on building surveillance video which was readily available and/or viewed by the police and defendants.

16. Because of the readily available video, the police officers and/or agents of the City of New York and/or NYPD knew or should have known that no crimes took place; yet, regardless, a warrant had been issued for plaintiff's and Jallah's arrest.

17. Despite the lack of probable cause, and despite the defendants,

despite knowing (or should have known) that no crime was committed by plaintiff, arrested the plaintiff on March 19, 2018.

18. Plaintiff, a high school student, while at school at Concord High School, was called to the dean's office, brought to a back, or separate room, and three plain clothes detectives and/or police officers entered the room and arrested him. He was taken to the 120th precinct and was detained at the precinct for approximately 24-30 hours. He was then taken to Riker's Island, where he was held for 110 days.

19. Upon information and belief, plaintiff was charged with stealing the Lyft driver's phone (including but not limited to, Robbery in the First Degree, Robbery in the 2nd Degree, Robbery in the 3rd degree, Grand Larceny, and Petit Larceny, inter alia), despite the fact that the driver had his phone and even called 911 from that very phone; thus, clearly no theft had occurred.

20. All charges in connection with this incident were dismissed on May 17, 2018.

21. Defendants were fully aware that plaintiff committed no crime, as the events were fully available on video, and defendants obtained that video, or should have obtained that video. Upon information and belief, said video was played during plaintiff's grand jury proceedings, so clearly defendants were aware of it and possessed it. Despite knowing the contents of the video, and knowing no crime was committed by plaintiff, defendants proceeded with arresting, detaining, and prosecuting plaintiff, who clearly had committed no

crime.

FIRST CAUSE OF ACTION
AS TO ALL DEFENDANTS:
PURSUANT TO 42 U.S.C §§ 1983,
FIRST, FOURTH, FIFTH, AND FOURTEENTH
AMENDMENT VIOLATIONS

22. Plaintiffs repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

23. Defendants were acting under color of state law, and while acting under color of state law, defendants deprived plaintiff of a federal constitutional right and statutory right, and by way of defendants' acts, defendants caused damages to be suffered by plaintiff.

24. Defendants, in their individual, personal, and/or official capacities, acted to undertake a course of conduct to injure, oppress, threaten, intimidate and deprive Plaintiff in the free exercise and enjoyment of the rights, privileges and immunities, and equal protection of the law secured to him by the state and federal Constitution, including Plaintiff's First, Fourth Fifth and Fourteenth Amendment rights; including but not limited to the right to not be falsely arrested; the right to not be maliciously prosecuted; defendants denied plaintiff due process of law, and the equal protection of law.

25. Plaintiff had the right to be free from being charged with a crime based on a lack of credible evidence and lack of probable cause; plaintiff further had the right to due process, of which he was denied;

pursuant to the First and Fourteenth Amendments to the United States Constitution.

26. Plaintiff had the right to be free from being charged with a crime, falsely arrested for a crime, and prosecuted for a crime, when there was no probable cause, and where exculpatory evidence existed, that defendants knew or should have known existed.

27. By reason of the foregoing, the Defendants, while acting under color of state law, in their individual, personal, and/or official capacities, targeted plaintiff and/or treated Plaintiff differently from similarly situated individuals.

28. By reason of the foregoing, the Defendants, acting under color of state law in their individual, personal, and/or official capacities, deprived plaintiff of his constitutional rights.

SECOND CAUSE OF ACTION
AS TO ALL DEFENDANTS:
PURSUANT TO 42 U.S.C §§ 1983,
FOURTH AMENDMENT FALSE ARREST

29. Plaintiffs repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

30. Defendants were acting under color of state law, and while acting under color of state law, or in their individual, personal, and/or official capacities, deprived plaintiff of a federal constitutional right and statutory

right, and by way of defendants' acts, defendants caused damages to be suffered by plaintiff.

31. Defendants, in their individual, personal, and/or official capacities, acted to undertake a course of conduct to falsely arrest the plaintiff, which included, but is not limited to, causing violations of plaintiff's equal protection of the law secured to him by the state and federal Constitution, including Plaintiff's First, Fourth Fifth and Fourteenth Amendment rights.

32. Defendants subjected the plaintiff to an unreasonable arrest in violation of the Fourth Amendment; defendants intentionally came to plaintiff's school, detained and arrested him therein; those acts subjected plaintiff to a seizure; the seizure was unreasonable.

33. The false arrest initiated by the defendants was in violation of plaintiff's First, Fourth, Fifth, Fourteenth Amendment rights, inter alia.

THIRD CAUSE OF ACTION
AS TO ALL DEFENDANTS:
PURSUANT TO 42 U.S.C §§ 1983,
MALICIOUS PROSECUTION

34. Plaintiffs repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

35. Defendants were acting under color of state law, and while acting under color of state law, or in their individual, personal, and/or official capacities, deprived plaintiff of a federal constitutional right and statutory

right, and by way of defendants' acts, defendants caused damages to be suffered by plaintiff.

36. Defendants, in their individual, personal, and/or official capacities, acted to undertake a course of conduct to maliciously prosecute the plaintiff, which included, but is not limited to, causing violations of plaintiff's equal protection of the law secured to him by the state and federal Constitution, including Plaintiff's First, Fourth Fifth and Fourteenth Amendment rights.

37. Defendants commenced and/or continued a criminal proceeding against the plaintiff; the termination of the proceeding was in plaintiff's favor; there was an absence of probable cause for the criminal proceeding; defendants intentionally lost, ignored, or destroyed exculpatory evidence; defendants acted with actual malice.

38. The decision made by the prosecutor to bring, maintain, and proceed with criminal charges was not independent of any pressure exerted by the defendants herein.

39. The misconduct alleged herein is more than merely reporting a crime, or giving testimony; defendants influenced the prosecutor's decision to prosecute; defendants failed to come forward with any relevant and compelling facts and/or proof; and thus, the defendants encouraged and/or importuned the prosecutor to act.

40. Defendants in their individual, personal, and/or official capacities played an active role in the prosecution; defendants failed to fully disclose

information which ought to and should have been disclosed to the prosecutor; defendants omitted and/or misrepresented information to the prosecutor, and such omission or representation initiated the prosecution; defendants acted with malice.

41. Defendants and their agents did not have probable cause to effect an arrest, and subsequently did not make a full and complete statement of the facts to the prosecuting entity or prosecutor, or kept back information or evidence which in all fairness should have been submitted to him or her; defendants withheld material facts and/or evidence that related directly to the subject arrest and prosecution, material facts which would have affected how the prosecutor proceeded. The defendants failed to make a full and complete statement of the facts to the prosecutor and/or the court, and/or held back information that might have affected the results, and as such, defendants initiated a malicious prosecution and violated plaintiff's First, Fourth, Fifth, Fourteenth Amendment rights, inter alia.

FOURTH CAUSE OF ACTION
AS TO ALL DEFENDANTS:
SECTION 1983 ABUSE OF PROCESS

42. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

43. Defendants in their individual, personal, and/or official capacities abused process by failing to adhere to standards and procedures with respect

to documenting evidence in a criminal matter; defendants failed to utilize, acknowledge, address, or maintain video or critical evidence that defendants knew or should have known would be exculpatory for the plaintiff. Moreover, defendants continued to encourage prosecution of the plaintiff, despite their knowing of the existence of critical expulcatory evidence. As such, defendants unlawfully and unconstitutionally deprived the plaintiff of his liberty and freedom, without provocation or cause.

44. Even if it is claimed by the defendants that there was a valid reason or probable cause for the arrest or criminal charges against plaintiff, defendants still misused a legal tool or process for ulterior purposes, constituting abuse of process.

45. Defendants employed regularly issued legal process to compel performance or forbearance of some act, with intent to do harm without excuse of justification; in order to obtain a collateral objective that is outside the legitimate ends of the process.

46. There was a regularly issued process, either civil or criminal; defendants had an intent to do harm without excuse or justification; defendants used the process in a perverted or improper manner to obtain a collateral objective, which was to harm and harass plaintiff herein, by interfering with plaintiffs' First, Fourth, Fifth, and Fourteenth amendment rights, inter alia.

47. The defendants abused their authority and abused their position; defendants abused and violated the public trust and in particular the trust of plaintiff. Defendants had no right under the laws of the land to detain, search, arrest, harass, incarcerate, or prosecute the plaintiff under the existing circumstances, yet they chose to regardless. The defendant officers, or other agents of the defendants, or the John Does, who did not detain, search, arrest, harass, incarcerate, or prosecute the plaintiff, should there be any, are liable to plaintiff for their failure to protect and intervene, and a violation of their duty to intervene, safeguard, and protect the plaintiff.

48. There existed an ulterior motive or purpose in using and abusing the process, as well as an act in the use of the process that is not proper in the regular prosecution of the subject legal proceedings.

49. Defendants had no probable cause for the arrest, but in addition to that, defendants intentionally disregarded, ignored, failed to address, and failed to acknowledge a critical piece of evidence at the center of the criminal matter against the plaintiff (the video); said evidence would have been exculpatory for the plaintiff. Despite this abuse of process and lack of critical evidence, defendant proceeded with the arrest and/or prosecution of the plaintiff and proceeded with encouraging the arrest and/or prosecution of the plaintiff.

1.

FIFTH CAUSE OF ACTION
AS TO ALL DEFENDANTS:
PURSUANT TO 42 U.S.C §§ 1981, 1983
CONSPIRACY TO ENGAGE IN FIRST, FOURTH, FIFTH,
AND FOURTEENTH AMENDMENT VIOLATIONS

50. Plaintiffs repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

51. Defendants acting under color of state law, in their individual, personal, and/or official capacities, conspired to deprive plaintiff of a federally protected right; there was the existence of a conspiracy involving state action; and a deprivation of plaintiff's civil rights in furtherance of the conspiracy by a party to the conspiracy.

52. Defendants, in their individual, personal, and/or official capacities, in their unconstitutional actions as set forth above, conspired with each other and others, under color of law and individually, reached a mutual understanding, and acted to undertake a course of unconstitutional actions as set forth above, conspired to undertake a course of conduct to injure, oppress, intimidate and deprive Plaintiff in the free exercise and enjoyment of the rights, privileges and immunities, and equal protection of the law secured to him by the Constitution, including Plaintiff's First, Fourth Fifth and Fourteenth Amendment rights; including but not limited to the right to be free from illegal searches and seizures, the right to privacy; the right to be free from abuse of process and malicious prosecution, and the denial of due process of law, and

the equal protection of law.

53. By their conduct and under color of state law and individually; and defendants, both individually and collectively, conspired and engaged in a cover up, to deliberately fail to photograph critical evidence, to intentionally lose or destroy critical evidence, in order to conceal the wrongful, unconstitutional, and unlawful conduct taken against Plaintiff, and/or to deprive plaintiff of exculpatory evidence, and to purposely mislead the prosecutor, as set forth above, by defendants and their co-conspirators.

54. As set forth above, the Defendants, in their individual, personal, and/or official capacities, and/or collectively, conspired together for the purpose of depriving the Plaintiffs of the aforementioned constitutional rights.

SIXTH CAUSE OF ACTION
AS TO DEFENDANTS
CITY, NYPD:
PURSUANT TO 42 U.S.C § 1983,
SUPERVISORY LIABILITY

55. Plaintiffs repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

56. THE CITY, NYPD, collectively referred to herein for this cause of action as “supervisors”, and also other supervisors whose names are currently

unknown but are referred to as JOHN DOES in the caption, directed STEVEN LUTZ, DETECTIVE 2ND GRADE GLENN MAURO, P.O. MICHAEL FRAUMENI, and other JOHN DOES representing additional officers whose names are unknown at this time, collectively referred to herein for this cause of action as “subordinates”, to take the actions set forth herein; supervisors had actual knowledge of subordinates’ violation of plaintiff’s civil and constitutional right, and supervisors acquiesced in that violation; supervisor, with deliberate indifference to the consequences, established and maintained a policy, practice or custom which directly caused the violation.

57. Defendant supervisors, in their individual, personal, and/or official capacities, individually and collectively, also engaged in supervisory roles and were senior policymakers with oversight, control over, and responsibility for other officers, agents, and/or employees.

58. Defendant supervisors, in their individual, personal, and/or official capacities, are and were responsible for training, instruction, supervision and discipline.

59. The custom and practice as described herein, which took place without proper supervision, created an unreasonable risk of the occurrence of constitutional violations to occur, which they did, as describe herein; the supervisors were aware that this unreasonable risk existed; the supervisor was deliberately indifferent to that risk; the subordinates’ actions which caused and created constitutional violations, resulted from the supervisors’ failure to adopt

a proper practice which would have prevented the constitutional violations.

60. Personal involvement by a supervisor or supervisors exist, as: the defendant supervisors, known or unknown at this time, either named specifically or referred to as JOHN DOE, participated directly in the alleged constitutional violation, the defendant supervisor, after being informed of the violation through a report or appeal, failed to remedy the wrong, the defendant supervisor created a policy or custom under which unconstitutional practices occurred, or allowed the continuance of such a policy or custom, the defendant supervisor was grossly negligent in supervising subordinates who committed the wrongful acts, and/or the defendant supervisor exhibited deliberate indifference to the rights of parolees, specifically, the plaintiff, by failing to act on information indicating that unconstitutional acts were occurring.

61. In light of the pattern and practice of an incompetent investigation, arrest, and prosecution, lack of probable cause, the loss or destruction of exculpatory evidence, the failure to photograph evidence, that plaintiff was subjected to as set forth herein, defendant supervisors, by way of their being supervisors or having supervisory roles, created, and had notice of unconstitutional actions and the creation of an unconstitutional situation and event, as set forth above.

SEVENTH CAUSE OF ACTION
AS TO ALL DEFENDANTS:
PURSUANT TO 42 U.S.C § 1983,
FAILURE TO INTERVENE/INTERCEDE

62. Plaintiffs repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

63. Plaintiff contends that one or more than one defendant (referred to herein as “first referenced defendant” for purposes of this cause of action) violated plaintiff’s constitutional rights, specifically, first, fourth, fifth, and fourteenth amendment, among others, and that one or more than one other defendants (referred to herein as “second referenced defendant(s)” for purposes of this cause of action) should be liable for that violation because the second referenced defendant(s) failed to intervene to stop the violation caused and created by the first referenced defendant. Thus, the second referenced defendant(s) is/are liable for that violation.

64. First referenced defendant violated plaintiff’s constitutional rights. Second referenced defendant had a duty to intervene. Second referenced defendant had a reasonable opportunity to intervene. Second referenced defendant failed to intervene.

65. Defendants, in their unconstitutional actions as set forth above, and defendants, in their individual and official capacities, and defendants, by their conduct both individually under color of state law, individually and collectively, each acting individually and under color of state law and in the

furtherance of their interagency conspiracy, had opportunities to intercede and prevent the wrongful, unconstitutional, and illegal acts towards plaintiff as set forth above, which resulted in violations of the First, Fourth, Fifth, and Fourteenth Amendments, and other constitutional violations, and failed to do so.

EIGHTH CAUSE OF ACTION
AS TO DEFENDANTS
CITY, NYPD:
MONELL CLAIM

66. Plaintiffs repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

67. Defendants CITY, NYPD, in their unconstitutional actions as set forth above, and all defendants, in their individual and official capacities, and all defendants and their agents and employees of CITY, NYPD, have developed and engaged in repeated practices, procedures, policies, and customs exhibiting deliberate indifference to the constitutional rights of individuals situated as plaintiff, and plaintiff herein.

68. It was the practices, procedures, policies, and customs of defendants to improperly deprive the plaintiff of his constitutional rights, and/or to enter into a conspiracy to deprive plaintiff of his constitutional rights.

69. CITY, NYPD, on their own, not only failed to prevent constitutional violations, but instead, has used its power, management, operation, and control to aid and abet in constitutional violations, and/or conceal constitutional violations, and/or cover-up constitutional violations, and/or allow and permit constitutional violations; and to control, manipulate and inflict harm on civilians and/or parolees, or those who are otherwise being targeted by people of power within the CITY, NYPD.

70. All of the acts and omissions by the individual defendants, described above were carried out pursuant to overlapping policies and practices of the CITY, NYPD, which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of defendants CITY, NYPD.

71. Defendants CITY, NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts as described herein, and/or failed to prevent or stop those acts and/or allowed those acts to continue.

72. Defendants engaged in the unconstitutional acts as described herein, notwithstanding their knowledge that said acts would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

73. Defendants CITY, NYPD, have grossly failed to train and adequately supervise its personnel, agents, and/or employees.

74. All of the acts and omissions by the individual defendants,

described above were carried out pursuant to overlapping policies, patterns, and practices of the CITY, NYPD, which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of defendant CITY, NYPD.

75. Defendant CITY, NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

76. Defendants detained, arrested, falsely searched, prosecuted, encouraged to prosecute, and victimized plaintiff in the absence of any evidence of probable cause or reasonableness to do so, notwithstanding their knowledge that said actions would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

77. Defendant CITY, NYPD, has grossly failed to train and adequately supervise its police officers in the fundamental law of use of reasonable detention, search, arrest, and/or prosecution.

78. The direct and proximate results of the defendants' acts are that plaintiff suffered severe and permanent injuries of a physical and psychological nature.

NINTH CAUSE OF ACTION
AS TO DEFENDANTS
CITY, NYPD, STATE, AND BOARD:
MUNICIPAL AND/OR GOVERNMENTAL LIABILITY

79. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

80. That defendant CITY, NYPD, its employees, agents and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to control and supervise its employees, agents and/or servants; failed to prevent the aforesaid detention, incarceration, violation of constitutional rights, and permanent psychological injuries to the plaintiff; and were otherwise reckless, careless, and negligent.

81. That as a result of the above referenced negligence; Plaintiff was caused to sustain damages and their constitutional rights were violated.

* * * * *

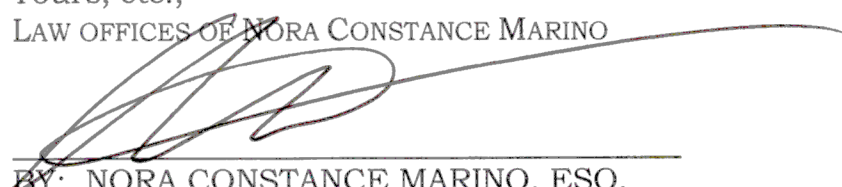
As a result of defendants' actions, plaintiff suffered damages.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of punitive damages, compensatory damages for his pain and suffering, loss of enjoyment of life, economic loss, and other losses and damages, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and plaintiff further demands punitive damages on

all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, costs, and disbursements.

Dated: March 9, 2021
Nassau County, NY

Yours, etc.,
LAW OFFICES OF NORA CONSTANCE MARINO



BY: NORA CONSTANCE MARINO, ESQ.
Attorneys for Plaintiffs
175 East Shore Road, Suite 230
Great Neck, NY 11023
516-829-8399
nora@marinojustice.com
File No.: 1619

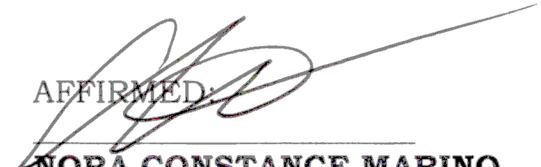
ATTORNEY VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NASSAU)

NORA CONSTANCE MARINO, an attorney duly licensed to practice law, affirms under penalties of perjury, that I am the attorney of record for plaintiffs in the within action; that I have read the foregoing **COMPLAINT** and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters, I believe it to be true. The reason this verification is made by me and not by plaintiffs named herein, is that the plaintiffs resides in a different county then that which your deponent maintains her office.

DATED: March 9, 2021
Nassau County, NY

AFFIRMED:



NORA CONSTANCE MARINO

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

Index No.:

KYLE BEATON,

Plaintiff,

- against -

THE CITY OF NEW YORK, the NEW YORK CITY POLICE DEPARTMENT, DETECTIVE STEVEN LUTZ, DETECTIVE 2ND GRADE GLENN MAURO, P.O. MICHAEL FRAUMENI and JOHN DOES 1-20, agents of the defendants, names being fictitious as their true identities are unknown at this time,

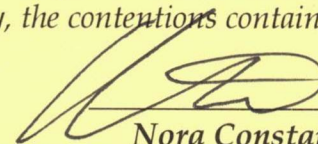
Defendants.

SUMMONS AND COMPLAINT

**Law Offices Of
NORA CONSTANCE MARINO**
Attorney for Plaintiff
Office and Post Office Address, Telephone
175 East Shore Road, Suite 230
Great Neck, New York 11023
PHONE: 516.829.8399
FAX: 516.829.4699

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 3/9/21 20__



Nora Constance Marino

To :

Service of a copy of the within
is hereby admitted.

Dated: _____ 20__

Attorney(s) for:

PLEASE TAKE NOTICE :

☐ NOTICE that the within is a (certified) true copy of a

OF ENTRY: duly entered in the office of the clerk of the within named court on _____ 20__

☐ NOTICE OF that an order of which the within is a true copy will be presented for settlement to the

SETTLEMENT: HON. _____ One of the judges of the within named Court, at
on _____ 20__ at _____ M.

Dated: _____, 20__

Yours, etc.

**Law Offices Of
NORA CONSTANCE MARINO**